

Court No. - 1

Case :- WRIT - C No. - 5743 of 2020

Petitioner :- Pati Ram Verma

Respondent :- U.P. Power Corporation Ltd. And 2 Others

Counsel for Petitioner :- Ashish Kumar, Maohammd Nadeem

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Learned counsel for the parties are present.

As prayed, put up this case on 20.2.2020 in the Additional Cause List in order to enable Sri S.K.Tripathi, learned counsel for the respondents to have instructions in the matter regarding the total amount deposited by the petitioner till date against the final assessment order.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 17.2.2020/NS

Court No. - 1

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Respondent :- U.P. Power Corporation Ltd. And 2 Others

Counsel for Petitioner :- Ashish Kumar, Maohammd Nadeem

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

As prayed by learned counsel for the respondent, put up this case on 26.02.2020.

Order Date :- 20.2.2020

Sanjeev

(Ajit Kumar,J.) (Ramesh Sinha,J.)

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Petitioner :- Pati Ram Verma

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Counsel for Petitioner :- Ashish Kumar, Maohammd Nadeem

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri Ashish Kumar, learned counsel for the petitioner, Sri S.K. Tripathi, learned counsel for the respondent Nos.2 and 3, learned Standing Counsel for respondent no.1 and perused the record.

The controversy in the present petition centres around the outstanding dues of the electricity charges pending against the petitioner and he being in arrears of dues, the electricity supply of the petitioner has been disconnected.

The order that has been impugned in the present petition is passed by the Executive Engineer who has rejected the representation of the petitioner on the ground that the petitioner had only deposited the amount against the final assessment which was Rs.6 lacs and odd and the regular electricity charges have remained unpaid and unless the electricity charges are paid, the petitioner's electricity supply cannot be restored.

Assailing the order impugned, the argument advanced by learned counsel for the petitioner is that in proceeding under Section 135 of Electricity Act, 2003, the petitioner has finally come to be acquitted by the judgement and order passed by the Addl. Sessions Judge, Court No.3, Kannauj on 11.5.2018 in Sessions Trial No.133 of 2016 and, therefore, since the petitioner has stood acquitted from the charges under Section 135 of Electricity Act, 2003, the final assessment order cannot be sustained. The amount, therefore, it is argued that has been deposited by the petitioner against the final assessment order which was passed taking it to be a case of theft, the same is liable to be adjusted under Sub-Clause (h) of Clause 8.2 of U.P. Electricity Supply Code, 2005. It is after adjustment of the said amount against the electricity charges, if any, further amount is due, the petitioner is liable to pay the same and he agrees that he will pay the same within a very short period of time.

Per contra the argument advanced by learned counsel for the respondent is that since the judgement of acquittal has come to be appealed against by the respondents in Crl. Appeal No.122 of 2018 under Section 378 Cr.P.C., it would not be appropriate for the respondents to adjust the amount of final assessment because in the event the appeal being allowed and the petitioner getting convicted under Section 135 of Electricity Act reversing the judgement of the Sessions Court, it would be very difficult to recover the amount.

The argument so advanced by learned counsel for the respondent nos.2 and 3 does not appeal

to us for the simple reason that as on date the petitioner has stood acquitted and on mere probability of appeal being allowed, it cannot be said that the final assessment shall hold good to be sustained with. Once the petitioner is acquitted from the charge under Section 135, the final assessment order automatically goes.

In view of the above, therefore, we direct the respondents to adjust the amount of final assessment order against the outstanding electricity charges and communicate the same to the petitioner within ten days from today raising demand of the balance amount. The balance amount shall be paid by the petitioner within a period of thirty days as per the fresh demand as directed here-in-above, the electricity supply of the petitioner shall be restored forthwith.

However, we are conscious of the fact that the criminal appeal is pending and, therefore, we observe at the same time, that the adjustment shall abide by the final result of the pending criminal appeal and in the event of conviction, it will be open for the respondents to recover the amount of the final assessment from the petitioner.

The present writ petition, therefore, stands finally disposed off with above observations and directions made above.

(Ajit Kumar, J.)

(Ramesh Sinha, J.)

Order Date :- 26.2.2020
Gaurav